



US0D1091073S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,091,073 S**
Gibson et al. (45) **Date of Patent:** **** Sep. 2, 2025**

(54) **SHOE**

(71) Applicant: **ROTHY'S, INC.**, San Francisco, CA
(US)

(72) Inventors: **La Vion Gibson**, San Francisco, CA
(US); **Matthew Taylor**, London (GB)

(73) Assignee: **ROTHY'S, INC.**, San Francisco, CA
(US)

(**) Term: **15 Years**

(21) Appl. No.: **29/873,673**

(22) Filed: **Apr. 5, 2023**

(51) **LOC (15) Cl.** **02-04**

(52) **U.S. Cl.**
USPC **D2/969; D2/923**

(58) **Field of Classification Search**
USPC D2/896, 897, 899, 900, 902, 904,
D2/906-908, 916-924, 925-945,
D2/947-960, 969-979
CPC A43B 1/00; A43B 1/02; A43B 1/04; A43B
3/00; A43B 3/02; A43B 3/06; A43B 3/10;
A43B 3/12; A43B 3/14; A43B 5/00;
A43B 5/001; A43B 5/008; A43B 5/10;
A43B 5/12; A43B 23/00; A43B 23/02;
A43B 23/04

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D111,095 S	8/1938	Wales
D115,923 S	8/1939	Grosvenor
2,212,610 A	8/1940	Lyness
2,233,978 A	3/1941	Gustin
2,302,580 A	11/1942	Shields
2,420,466 A	5/1947	Cordeau
D147,356 S	8/1947	Stritter
2,439,341 A	4/1948	Hlobil

2,472,265 A	6/1949	Harry
D154,797 S	8/1949	Page
D163,020 S	4/1951	Braun

(Continued)

FOREIGN PATENT DOCUMENTS

CN	303679619 S	5/2016
CN	303880870 S	10/2016

(Continued)

OTHER PUBLICATIONS

The Ravello Loafer in Faded Brown _ Men's Shoes _ Rothys's,
posted [online], [retrieved Apr. 25, 2025]. Retrieved from internet,
<https://rothys.com/products/mens-ravello-loafer-faded-brown> (Year:
2025).*

(Continued)

Primary Examiner — Amber R Stiles

Assistant Examiner — Christen Pilar Brown-Lorrig

(74) *Attorney, Agent, or Firm* — ArentFox Schiff LLP

(57)

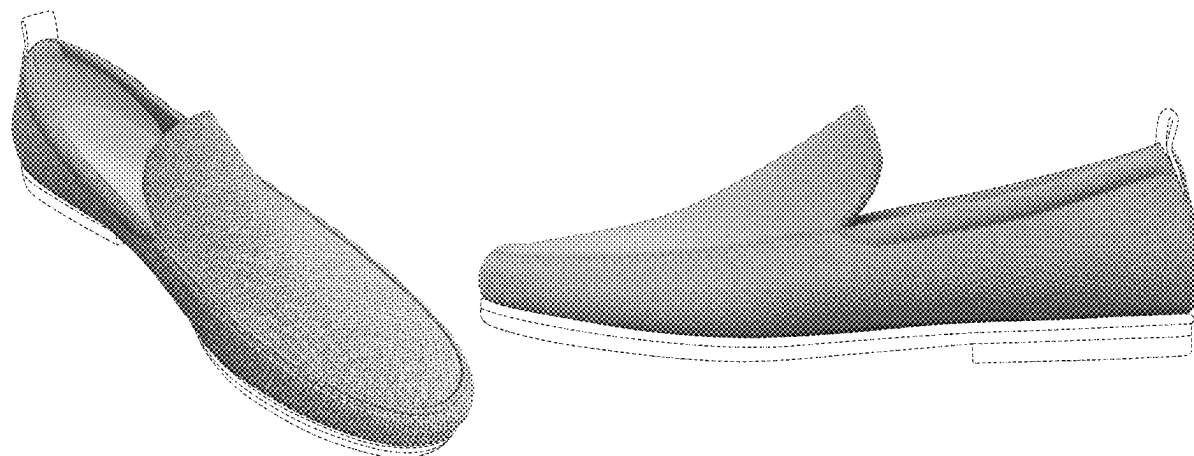
CLAIM

The ornamental design for a shoe as shown and described.

DESCRIPTION

FIG. 1 is a front left perspective view of a shoe showing our new design;
FIG. 2 is a front view of the design shown in FIG. 1;
FIG. 3 is a rear view of the design shown in FIG. 1;
FIG. 4 is right side view of the design shown in FIG. 1;
FIG. 5 is a left side view of the design shown in FIG. 1;
FIG. 6 is a top view of the design shown in FIG. 1; and,
FIG. 7 is a bottom view of the design shown in FIG. 1.
FIGS. 1-7 include broken lines that are included for the purpose of illustrating portions of the shoe that form no part of the claimed design. Colors form no part of the claimed design.

1 Claim, 7 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

2,774,087	A	12/1956	Bozza	
D182,707	S	5/1958	Borden	
D186,155	S	9/1959	Bianchini	
D206,222	S	11/1966	Mostile	
3,471,948	A	10/1969	Nadler	
3,538,527	A	11/1970	Ioannili	
D232,008	S	7/1974	Fukuoka	
D246,943	S	1/1978	Fukuoka	
D248,511	S	7/1978	Fukuoka	
D267,676	S	1/1983	Allen	
D335,947	S	6/1993	Shelley	
D342,826	S	1/1994	Valade	
D367,353	S	2/1996	Pyle	
D474,003	S	5/2003	Della Valle	
D500,192	S	12/2004	Belley et al.	
D509,646	S	9/2005	Della Valle	
D511,037	S	11/2005	Della Valle	
D511,611	S	11/2005	Della Valle	
D516,780	S	3/2006	Della Valle	
D563,634	S	3/2008	Della Valle	
D587,882	S	3/2009	Wolf	
D595,039	S	6/2009	Matis	
D602,681	S	10/2009	Della Valle et al.	
D604,483	S	11/2009	Della Valle et al.	
D611,239	*	3/2010	Brambilla	D2/969
D613,483	S	4/2010	Della Valle	
D627,142	S	11/2010	Spring	
D697,291	*	1/2014	Zaedow	D2/923
D707,926	*	7/2014	Louboutin	D2/923
D710,575	*	8/2014	Hardy	D2/896
D723,251	S	3/2015	Hazan	
D786,542	*	5/2017	Fu	D2/923
D809,754	S	2/2018	Kim	
D874,096	S	2/2020	Fang	
D884,317	S	5/2020	Hawthornthwaite et al.	
D891,069	*	7/2020	Jenkins	D2/969
D891,070	*	7/2020	Jenkins	D2/969
D943,919	S	2/2022	Martin	
D950,224	S	5/2022	Martin et al.	
D958,510	S	7/2022	Martin et al.	
D984,104	*	4/2023	Wang	D2/952
D987,270	S	5/2023	Rezaie	
D995,053	S	8/2023	Fontaine et al.	
D997,523	S	9/2023	Yung	
D1,000,764	*	10/2023	Huang	D2/924
D1,004,936	*	11/2023	Martin	D2/969
D1,010,988	*	1/2024	Guidetti	D2/923
D1,012,469	*	1/2024	Martin	D2/969
D1,017,980	*	3/2024	Lin	D2/923
D1,020,210	*	4/2024	Martin	D2/969
D1,036,823	*	7/2024	Martin	D2/923
D1,036,824	*	7/2024	Sheng	D2/951
D1,037,622	*	8/2024	Martin	D2/923
D1,044,228	*	10/2024	Gibson	D2/907
D1,044,231	*	10/2024	Sheng	D2/923
D1,052,235	*	11/2024	Gibson	D2/907
D1,054,160	*	12/2024	Gibson	D2/969
D1,054,678	*	12/2024	Gibson	D2/907
D1,055,474	*	12/2024	Fang	D2/954
D1,057,364	*	1/2025	Huang	D2/923
D1,059,001	*	1/2025	Hawthornthwaite	D2/923
D1,059,003	*	1/2025	Chen	D2/939
2003/0106171	A1	6/2003	Issler	
2016/0206037	A1	7/2016	McCormick	

FOREIGN PATENT DOCUMENTS

CN	304172365	S	6/2017
CN	304225174		8/2017
CN	304225214		8/2017
CN	304877328		11/2018
CN	304910455	S	11/2018
CN	305033683	S	2/2019
CN	305394649	S	10/2019
CN	305394728	S	10/2019

CN	305908482	S	7/2020
EM	006567350-0001		6/2019
EM	008676571-0004		9/2021
EM	008931703-0012		4/2022
EM	015010566-0002		2/2023
GB	90052631260027		5/2018
GB	6160430		9/2021
HK	218862-0002		11/2021
HK	2118661-0002		11/2021
JP	D1569529	S	2/2017
KR	30-0778727	S	1/2015
KR	30-0963253	S	7/2018
KR	30-0973895	S	9/2018
KR	30-0980824	S	11/2018
KR	30-0980825	S	11/2018
TW	D118026	S	7/2007

OTHER PUBLICATIONS

Santimon Men's Casual Tassel Bow Slip-On, Datasheet [online], Amazon, Feb. 22, 2020 [retrieved on Jun. 5, 2023]. Retrieved from the Internet: <URL:www.amazon.com/dp/B0851X8277?ref=cm_sw_r_cp_ud_dp_KJSDDYD9H59NC3H6YJWQ&th=1>, 5 pages.

Sperry Men's Davenport Venetian Loafer, Datasheet [online], Amazon, Jan. 27, 2021 [retrieved on Jun. 5, 2023]. Retrieved from the Internet: <URL:www.amazon.com/dp/B08V59N7LQ?ref=cm_sw_r_cp_ud_dp_INSN31YRJ0SH4RK5JVHM>, 8 pages.

Amazon Fashion, "Artisure Women's Classic Genuine Leather Penny Loafers Driving Moccasins Casual Slip On Boat Shoes Fashion Comfort Flats," Amazon.com, Jun. 30, 2018, Retrieved from Internet: <https://www.amazon.com/dp/B07KR878GJ48_encoding=UTF8&psc=1&ref=cm_sw_r_cp_ud_dp_5W9BYXFBSSF6RHEQ2MRF>, 9 pages.

Amazon Fashion, "Coutgo Mens Penny Loafers Casual Driving Moccasins Shoes Comfortable Slip On Boat Shoes," Amazon.com, Jan. 31, 2023, Retrieved from Internet: <https://www.amazon.com/dp/B0BTHQN8KR?_encoding=UTF8&psc=1&ref=cm_sw_r_cp_ud_dp+FD0AC3NTNAE958EKEEQJ>, 9 pages.

Amazon Fashion, "Lacoste Men's Concours Driving Style Loafer," Amazon.com, Dec. 13, 2017, Retrieved from Internet: <https://www.amazon.com/dp/B071GF5M1D?ref=cm_sw_r_cp_ud_dp_Q7RT0MRYFR1JSE1JXHN4>, 8 pages.

Amazon Fashion, "yldsgs Men's Penny Loafers Moccasin Suede Leather Slip On Casual Dress Driving Shoes," Amazon.com, May 21, 2021, Retrieved from Internet: <https://www.amazon.com/dp/B095KWYR4F?encoding=UTF8&psc=1&ref=cm_sw_r_cp_ud_dp_NT9Z55DY2RVEVN318QF6>, 10 pages.

Nordstrom, "Canali Driver Loafer (Men)," Nordstrom.com, Aug. 26, 2022, Retrieved from Internet: <https://www.nordstrom.com/s/driver-loafer-men/7348248?origin=category-personalizedsort&breadcrumb=Home%2FMen%2FShoes%2FLoafers>, 8 pages.

Youtube, "Billionaire Loafer Worth It Loro Piana Summer Walk Review," youtube.com, May 1, 2023, Retrieved from Internet: <https://www.youtube.com/watch?v=G17ru4vk10s>, 1 page.

Youtube, "Laced Driving Loafer Racing Green Suede," youtube.com, Jan. 16, 2018, Retrieved from Internet: <https://www.youtube.com/shorts/JiOKFUdaXVU>, 1 page.

Office Action dated Nov. 30, 2023, issued by the Taiwan Patent Office in related Taiwan Application No. 112303922, 4 pages. (Partial Translation).

Notification dated Mar. 15, 2022, issued by the Japanese Patent Office in related Japanese Patent Application No. 2021-019608, 4 pages.

Car and Driver, No. 10, vol. 21, (May 26, 1998), p. 149 (HA10008158).

Kateigaho, No. 9, vol. 43, (Sep. 1, 2000) p. 156 (HA12007809).

Travel & Leisure, No. 3, vol. 29, p. 121 (HB11003973), (1999).

"First Person", Land's End, Inc., (Jul. 31, 2001) p. 40 (HD13025047).

Amazon.com: Cole Haan Mens Somerset Venetian Casual Shoes: Shoes, Available from the internet URL: http://www.amazon.com/Cole-Haan-Somerset-Venetian-Casual/dp/B017D_U5BQC/ref=zg_bsnr_679313011_81; retrieved Dec. 4, 2015 (HJ27047220).

Amazon, "Bruno Marc Men's Dress Loafers Casual Slip-on Driving Shoes," First Available: Oct. 1, 2020 [online], Available from the

(56)

References Cited**OTHER PUBLICATIONS**

internet URL: https://www.amazon.com.mx/Bruno-Marc-Mocasines-conducci%C3%B3n-Casuales/dp/B07ZJLVRBJ?ref_=Oct_d_obs_d_14093126011_1&pd_rd_w=Fjcgk&content-id=amzn1.sym.8dd21060-5886-4360-b65a-de26d12a0bbc&pf_rd_p=8dd21060-5886-4360-b65a-de26d12a0bbc&pf_rd_r=8VYTKGGP5TTSKXQD1BZ0&pd_rd_wg=kVTvY&pd_rd_r=c5a52e86, 10 pages.

Bambola, "Moccasin shoe for children with atifaz," First Available: Sep. 28, 2020 [online], Available from the internet <URL: <https://bambola.mx/products/zapato-mocasin-para-nino-miel>>, 6 pages.

Office Action dated Aug. 6, 2024, issued by the Mexican Patent Office in related Mexican Application No. MX/f/2023/002783, 9 pages.

Beauseen Women's Gold Penny Loafers, First Available: Nov. 26, 2019 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B08CVT3B8Z?_encoding=UTF8&pvc=1&ref_cm_sw_r_cp_ud_dp_0DGX7SY6WZYS5MCJ3JJA (Year: 2019).

Dosomi Womens Suede Driving Shoes, First available: Sep. 3, 2019 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B07XDQK58W?ref_cm_sw_r_cp_ud_dp_S8C2E8RGW7RVVV7NKRTB5 (Year: 2019).

Generic Mens Loafers Driving Moccasins Loafer Shoes, First available: Jul. 26, 2022 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B0B7MVRT2W?ref_cm_sw_r_cp_ud_dp_3ZHPANK81BE80YGZ17PJ (Year: 2022).

Go Tours Mens Handmade Suede Leather Penny Loafers Moccasin Slip On Boat Shoes, First Available: Nov. 2, 2021 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B0B2LLTHSR?_encoding=UTF8&pvc=1&ref_cm_sw_r_cp_ud_dp_G5GF1C9XS36M5V94XBZV (Year: 2021).

Happyshop Classic Business Men's Shoes, First available: Nov. 8, 2013 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B07BFFBRFY?ref_cm_sw_r_cp_ud_dp_CBY9SNTTJD9R9DX8R2DN (Year: 2013).

Happyshop Men's Genuine Leather Moccasin Tassel Shoes, First available: Nov. 8, 2013 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B07HQHTFRC?ref_cm_sw_r_cp_ud_dp_E7WFG1TJPZHX2GKCJDQV (Year: 2013).

Jions Men's Driving Penny Loafers Suede Driver Moccasins Slip On Flats Boat Shoes, First available: Oct. 20, 2019 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B07TVD9R3L?_encoding=UTF8&pvc=1&ref_cm_sw_r_cp_ud_dp_Y2ZP6C4ASQ2PH7598QP7 (Year: 2019).

Notice of Allowance dated Jun. 29, 2022, issued by the Taiwan Patent Office in related Taiwan Application No. 110304882.

Notification of Reasons for Refusal issued by the Japanese Patent Office in related Japanese Patent Application No. 2021-019607, dated Mar. 15, 2022.

Office Action dated Jul. 12, 2022, issued by the Taiwan Patent Office in related Taiwan Application No. 110304883.

Osslue Women's Brown Suede Leather Casual Penny Loafers, First available: Jun. 18, 2021 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B097HL2NFC?encoding=UTF8&ref_cm_sw_r_cp_ud_dp_TRBK0PR8Y774M0N5YTFB&th=1&pvc=1 (Year: 2021).

Temu Womens Moccasin House Slippers, First available: Nov. 30, 2022 [online], [visited: Mar. 28, 2023] Available from the internet URL: https://www.amazon.com/dp/B0B5Z8DX1X?_encoding=UTF8&ref_cm_sw_r_cp_ud_dp_3H8ABS4Q17EDG5SMVSI&th=1&pvc=1 (Year: 2022).

The Neiman Marcus Group, Inc., "Manolo Blahnik Terry-Trimmed Suede Driver—Neiman Marcus", Sep. 10, 2012, <URL: http://www.neimanmarcus.com/p/Manolo-Blahnik-Terry-Trimmed-Suede-Driver/prod149930196_cat13030763/?icid=&searchType=EndecaDrivenCat&rt=252Fcategory.service%253FitemId%253Dcat13030763%2526page%253Fsize%253D>, Publicly known Document No. HJ24031843, Design Division, Japan Patent Office, corresponding images (8 Pages Total).

MJNY Mens Casual Comfortable Genuine Leather Lightweight Driving Moccasins Classic Fashion Penny Loafer Slip On Breathable Driving Loafer, First available: Mar. 2, 2021, Retrieved from the Internet: <URL: <https://www.amazon.com/Comfortable-Genuine-Lightweight-Moccasins-Breathable/dp/B08XXH46KX>>, 8 pages.

Driving Mocs, First available: Mar. 31, 2017 [Retrieved on Jul. 24, 2023]. Retrieved from the Internet: <URL: <https://www.youtube.com/watch?v=JKVBmszZobO>>, 1 page.

Mashand Womens Loafers Slip on Dress Flats Shoes Breathable Knit Boat Shoes, First available: Jul. 7, 2022 [Retrieved on Jul. 24, 2023]. Retrieved from the Internet: <URL: <https://www.amazon.com/Mashand-Womens-Loafers-Dress-Breathable/dp/B0B61FG2ZY>>, 7 pages.

Tod's Mocs Alternatives, First available: Nov. 15, 2019 [Retrieved on Jul. 24, 2023]. Retrieved from the Internet: <URL: <https://www.youtube.com/watch?v=PGR0HCvYo68>>, 1 page.

Review: Jack Erwin Suede Parker Driving Loafer, The Peak Lapel, First available: Apr. 17, 2018 [Retrieved on Jul. 24, 2023]. Retrieved from the Internet: <URL: <https://www.thepeaklapel.com/home/2018/4/17/review-jack-erwin-suede-parker-driving-loafer>>, 7 pages.

Review: The Lure of Oliver Cabell's Affordable-Luxury Driving Shoes, Modern Fellows, First available: Sep. 2, 2020 [Retrieved on Jul. 24, 2023]. Retrieved from the Internet: <URL: <https://www.modernfellows.com/oliver-cabell-review-driving-shoes/>>, 14 pages.

Office Action in TW111305119, mailed Aug. 10, 2023, 3 pages.

Search Report in TW111305119, mailed Apr. 28, 2023, 4 pages.

Alden Tassel Loafer Snuff Suede, First available: Oct. 13, 2016 [online], [visited: Aug. 25, 2023] Available from the internet URL: <https://aldenmadison.com/collection/tassel-loafersnuff-suede3403f/> (Year: 2016), (2 Pages Total).

Bobbies Dandy Suede Driving Shoes, First available: Mar. 10, 2022 [online], [visited: Aug. 25, 2023] Available from the internet URL: <https://www.pinterest.com/pin/image-3-of-bobbies-dandy-suede-driving-shoes--663647695080021189/> (Year: 2022), (2 Pages Total).

Geogra Pro Loafers Men Outfit, First available: May 30, 2022 [online], [visited: Aug. 25, 2023] Available from the internet URL: <https://www.pinterest.com/pin/shoes--4714774601002012/> (Year: 2022), (2 Pages Total).

* cited by examiner



FIG. 1

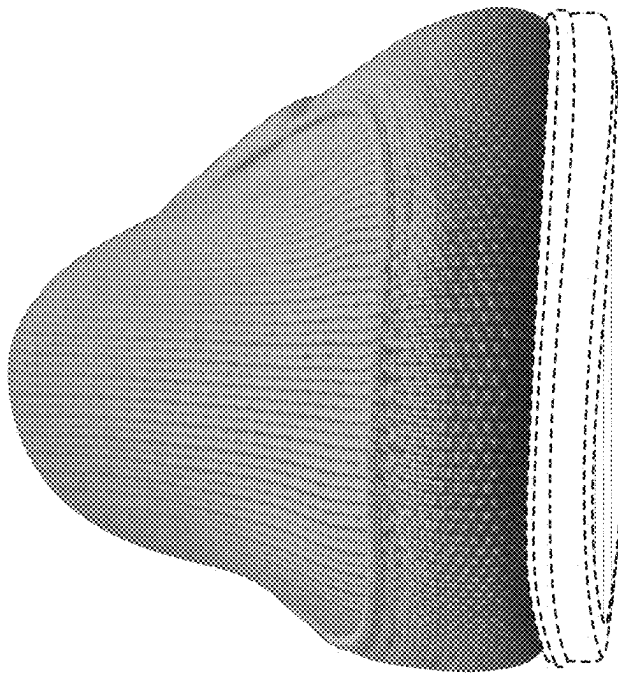


FIG. 2

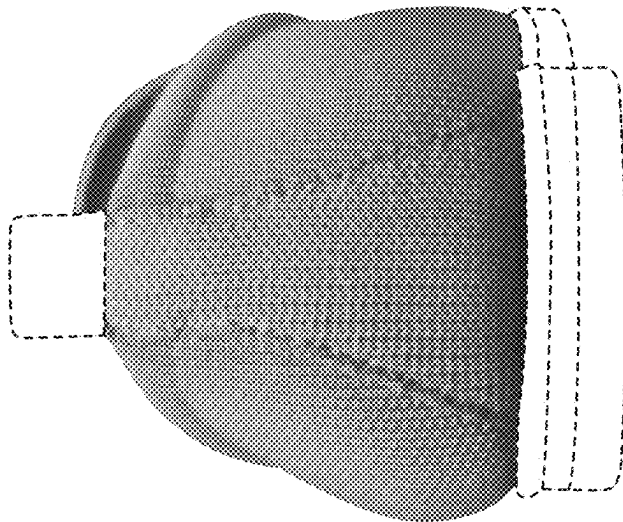


FIG. 3

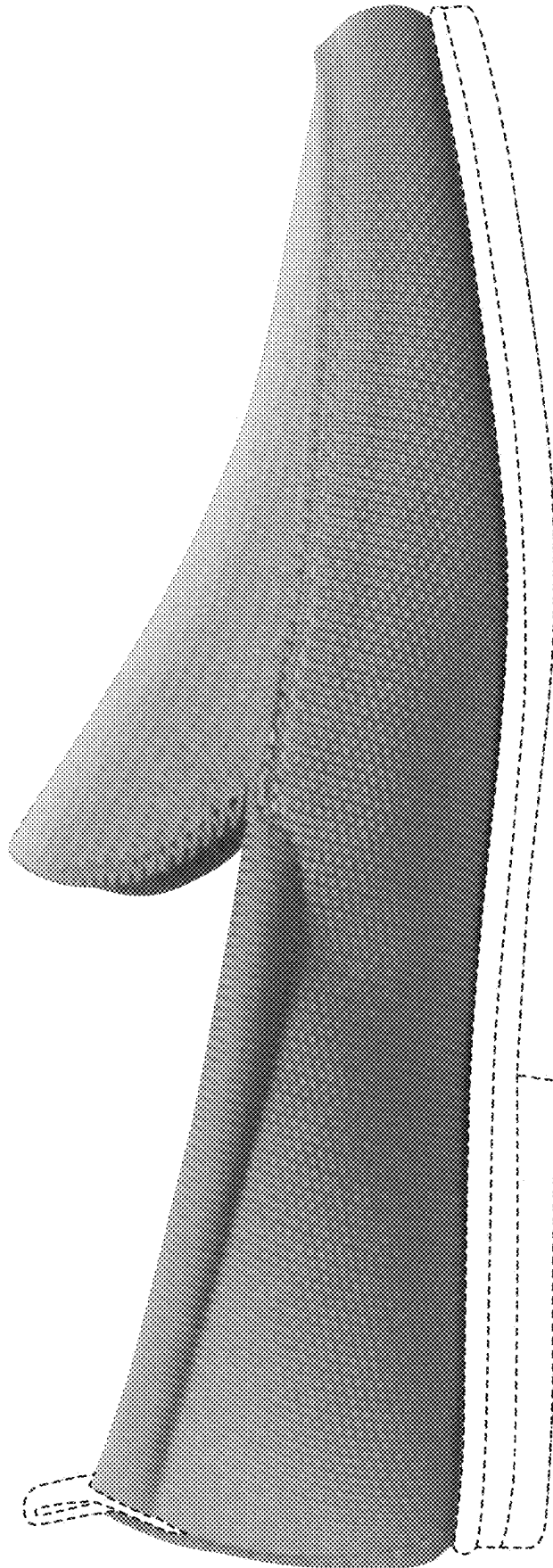


FIG. 4

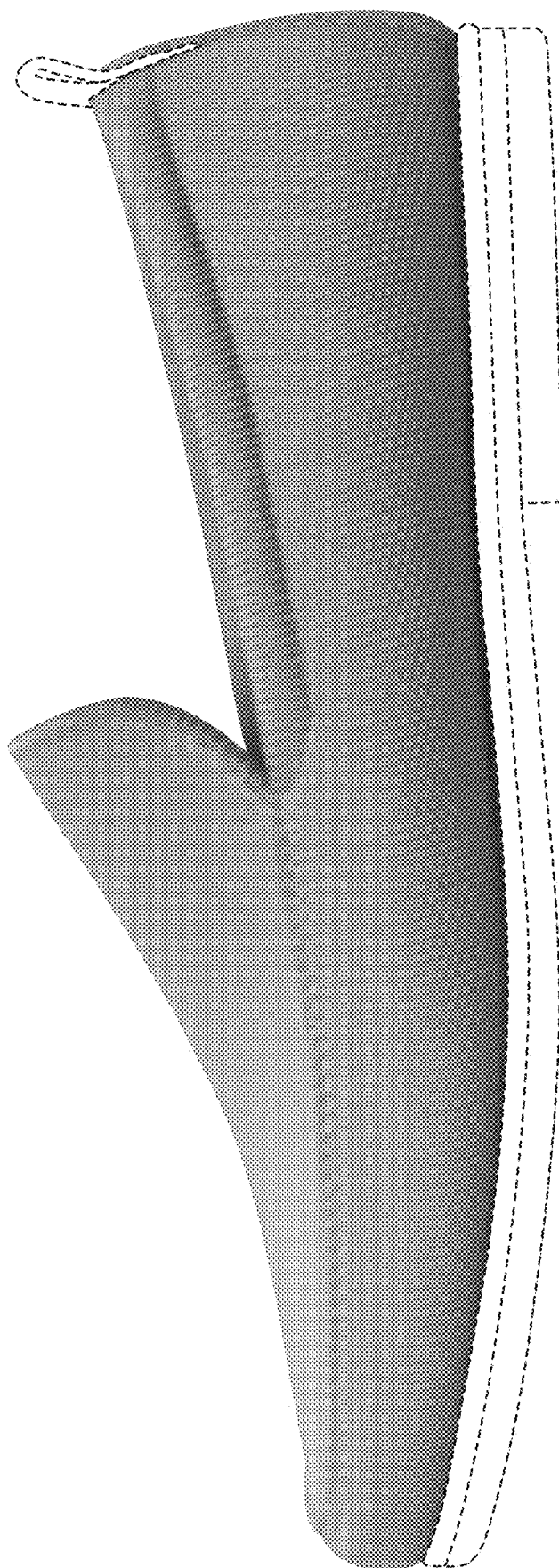


FIG. 5



FIG. 6

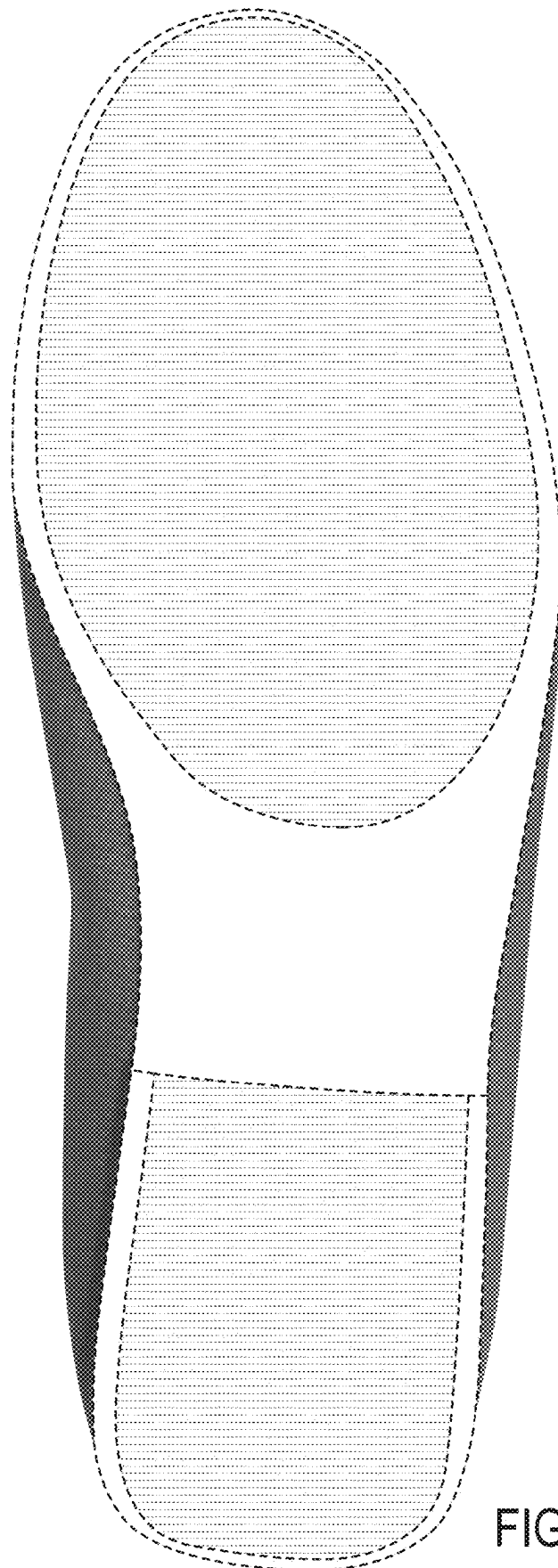


FIG. 7